

Dinesh Prasad v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 16 May 2022 · WRIT - C No. 2761 of 2022 ·
Writ dismissed for a pending civil suit on the same demand.

HEADNOTE

A writ to quash tahsil recovery of an electricity demand was dismissed because the petitioner had already sued for an injunction against the same demand notice. Parallel Article 226 and civil proceedings for that relief were refused. Clause 6.5 was noticed only as liberty reserved in an earlier writ and was not construed.

FACTUAL SUMMARY

Dinesh Prasad sought to quash a tahsil writ of demand dated 12 April 2022 for Rs 10,48,504 and other charges. The Executive Engineer had sent a recovery certificate to the District Magistrate after Prasad failed to deposit against a demand notice of 27 January 2021. Writ Petition No. 31399 (MB) of 2007 had earlier been disposed of with liberty to move the authority under clause 6.5 of the U.P. Electricity Supply Code, 2006. He had also filed Original Suit No. 66 of 2021 at Hardoi for an injunction against the same recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

writ barred by pending civil suit on the same demand

HOLDING

The writ was dismissed. A petitioner who has already filed a civil suit for an injunction against recovery of a demand notice cannot maintain a parallel Article 226 petition for the same relief. Clause 6.5 is mentioned only as the liberty reserved when Writ Petition No. 31399 (MB) of 2007 was disposed of; this order does not apply or construe that clause, or the demand. ¶ 1

FLAG Order cites the U.P. Electricity Supply Code, 2006. Clause 6.5 is not renumbered. It records only the liberty in the earlier writ and is not construed.

PRINCIPLE TAGS

procedural-listing-no-construction The writ was dismissed, not listed. The ground was that Original Suit No. 66 of 2021 already sought an injunction against the demand notice dated 27 January 2021, so a parallel Article 226 petition for the same relief would not be entertained. No catalog clause 6.5 principle was applied; the clause appears only as the liberty given in the earlier writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND NOTICE DATED 27 JANUARY 2021 AND OF THE TAHSIL RECOVERY OF RS 10,48,504

Not examined. The pending civil suit was left to proceed. ¶ 1